

ADMINISTRATIVE LAW

According to H.W.R WADE & CHRISTOPHER FORSYTH, Administrative law, Ninth Edition, 'Administrative law is the law relation to the control of Government power' [pg 44]. Administrative law is said to be a body of general principles which govern the exercise of powers and duties by public authorities. Administrative law and constitutional law are closely related because the rule of law is a basic concept which runs through both of them. The primary meaning of the rule of law is that everything must be done according to the law. The secondary meaning is therefore that Government should be conducted within a framework of recognized rules and principles which restrict discretionary power [pg 20]. Rule of law also means judicial independence; it also means fairness.

Constitutional Framework for Administrative Law

The Constitution gives a broad framework for management of this Country. It establishes the main organs of Government and allocates duties. It's also establishes public offices. Government acts through Public institutions and Offices. Government institutions make decisions which affect the members of the public and they are also accountable to the public. It is important for both members of public and public institutions to respect the Constitution because the same has powers that bind both.

Supremacy of the Constitution [Art.2].

It provides that the Constitution is the supreme law. The constitution has binding authority over all persons in Uganda and any provision which is centrally to the constitution is null & void. Public officials are therefore expected to ensure that whatever decision they make is in line with the constitution.

Rule of Law

According to Professor Dicey, the Rule of Law means that all powers of Government must be exercised according to law. It means; absolute supremacy of the law as opposed to arbitrary exercise of powers; equality before the law; supremacy of the constitution.

The rule of law requires that there should be a strong Government; capable of enforcing the law; capable of protecting people's rights; ensure people enjoy their freedoms and punish offenders of peace; That a Government must be established in accordance with the existing laws. It is also according to constitutional principle that government not only has to be established according to law but according to fair and just Laws which recognize individual freedom and promote public welfare and these

exclude oppressive and unfair laws; Equality before the law- where all persons are subjected to the same



rights and obligations without discrimination or favour. [Art 21 of cap 1 provides that all people are equal before the law]. Article 21 however recognizes that some form of affirmative action may be extended in order to address the existing injustices. Another principle to establish the rule of law is the independence of the Judiciary. The rule of law requires an independently functioning judiciary dispensing justice without fear or favour. What makes the judiciary independent? Proper qualification, Appointing authority, Security of tenure.

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What the Rule of Law Entails

Much as human rights are recognized and promoted under Chapter four of the Constitution of Uganda, human rights are however not absolute but limited in some instances specifically in Art.43 which counter-provide that; where the rights of the people are compromised & also limited in public interest.

Suffice to note is that Art.44 gives rights which cannot be taken away & they include; right to habeas corpus, the right to freedom of torture [Art.24].

The Constitution provides a mechanism for enforcing the above mentioned rights through; the Uganda Human Rights Commission [UHRC], Police, Courts of law, Parliament, LC's, NGO's, International Organizations, Probation offices.

Representative Government or a Democratic government

A democratic Government is where leaders are elected periodically through a process of universal adult suffrage. It is argued that this process makes leaders accountable to the electorate through observing human rights. Article one is a reflection of a democratic government and emphasizes electoral laws.

Fair law of criminal process

The rule of law requires that accused persons be treated in a fair and human manner. 'The presumption of innocence' as enshrined in Article 28 of cap 1.

- the right to interpretation
- the right to representation
- the right to being heard
- the right to a speedy and an impartial trial

Sound and effective principles of administrative law

The rule of law requires that there should be clear rules which eliminate and limit the possibility of arbitrary actions.

Effective principles ensure that the following are in place;

- Exercise powers that they have
- That public authorities follow established procedures
- Ensure that discretionary powers are not abused; instead exercised judiciously.
- Principles of natural justice are observed

- Aggrieved persons to have remedies
- Article 42 requires public officials to exercise justice and fairness.



Respect for principles of international law

There is certain internationally acceptable minimum scope of conduct expected of all countries such as the international convention on women's rights.

Social justice

The environment should enable all people have a meaningful definition of life.

The doctrine of separation of powers

What did Montesquieu say?

Is there separation of powers in Uganda?

Ministerial responsibility

What is individual responsibility?

What is collective responsibility?

Administrative Authorities

Those are public bodies established for purposes of enforcing policies of Government at all levels. They are also those institutions which execute and enforce laws at various levels e.g. President, Ministers, Permanent Secretaries, local Governments, Constitutional Commissions, Constitutional Officers, Public Corporations, Administrative tribunals.

The President

The Office of the President of Uganda is established under Article 98 of the 1995 Constitution of Uganda. Furthermore, Article 99 vests all executive powers in the person of the President. The president becomes an administrative authority when he puts in place what the law requires him to do. While executing his administrative functions, the president becomes a subject of administrative law;

- Executes his powers
- Exercise procedures
- Becomes accountable in such execution

Under Articles 111 to 114, the President is required to constitute the cabinet and to appoint ministers. This role of constituting cabinet is administrative in nature because the President must follow provisions of the same Articles. E.g. all Presidential nominees must be approved by Parliament.

The President is given discretion under Article 172 to appoint certain public officers e.g. permanent secretaries, Ambassadors, Directors, members of public service, Governor of Bank of Uganda, Auditor General, IGP, UHRC, EC, DPP, Judges of courts of Judicature. In carrying out these functions, the president becomes a subject of administrative law and must comply with the legal requirements.

The president must follow the established procedures of identifying candidates and

also procedures to be followed on appointment i.e. getting advice from the relevant commissions and approval by parliament.

Under Article 123, the president is empowered to execute treaties, conventions and agreements with foreign nations but in so doing, he is obliged to follow prescribed rules



and procedures hence a subject of administrative law. Under Article 124, the president has powers to declare a state of emergency but also with the approval of parliament.

Prerogative of mercy

The president is empowered by the same constitution to grant a pardon; the reduction or remission of a sentence. This administrative function must follow advice from the prerogative committee on mercy.

Ministers

- Basically, they initiate and formulate policies for approval of cabinet.
- They similarly defend Government policies in parliament.
- Under Article 99[5] they may also perform such other duties assigned to them by the president.
- Under the Transfer of Powers and Presidential Powers, the President assigns them duties.

While implementing policies, ministers become administrative officers. There are many Acts of parliament that empowers ministers to appoint persons of public corporations such as Managing Directors, Secretaries of Corporations. This requires Ministers to conform to the procedural requirements and must also exercise transparency and fairness. The power to appoint normally goes with the power to remove.

Ministers as regulators; there are some laws which gives ministers power to regulate affairs e.g. Under the Workers Compensation Act; all employers are required to take up insurance from recognized insurance companies to cover up the workers. Under this law, the Minister is empowered to approve the insurance company to take out the insurance. This gives them discretion and the minister is therefore expected to be judicious in fulfilling his duty.

Ministers as licensing authorities; in this respect the Minister ensures that the licensees are qualified; the licensee is in position to observe the procedures. E.g. under the Electricity Act, the Minister of Energy under sec 38 to invoke licenses for generation & transmission of electricity.

Ministers as law makers; there are Acts of parliament which empower ministers to make rules, regulations, orders or guidelines relating to the implementation of a particular law e.g. the Land Regulations was made by a minister, Community service Act- under this Act, the minister is empowered to enact regulations, The Local Government Act; the minister is given powers to amend schedules to the Local Government Act.

Constitutional Commissions

Are those bodies established by the Constitution for the purposes of carrying out special functions of a Governmental nature? It includes Public Service Commission, Health Service Commission, Education Service



Commission, Judicial Service Commission, Electoral Commission, Uganda Human Rights Commission etc.

Constitutional Commissions carry out highly specialized & technical work thus it requires special facilities, funds- all these requirements make it difficult for them to operate within government departments. Therefore, are expected to be independent from government organs.

Members of the commission are appointed by the president subject to approval by parliament. The standard qualification is high moral character, proven moral integrity, competence & experience in public affairs.

These commissions also derive their authority from relevant Acts of parliament e.g. Electoral Laws which enabled the Electoral commission to cultivate its mandate. Constitutional Commissions are subject to administrative law but their powers can be challenged when they act ultra vires, also are bound by the principles of natural justice (right to be heard & freedom from bias). Decisions of Constitutional Commissions are subjected to judicial review.

Constitutional Offices

Are those established as offices of high caliber which attend to particular duties of Government e.g. IGG, AG, PJ, CJ, DPP, Clerk of Parliament etc. they are appointed by the president subject to approval by parliament. They perform functions specified in the Constitution and enabling laws e.g. the Public Finance Management Act, 2005, Local Government Act, Public Finance Regulations, Whistleblowers Protection Act, Judicature Act, Anti-Corruption Act.

Public Corporations

There are many activities or services of Government which cannot be executed within the Governments' high level of bureaucracy. These activities are normally required for autonomous decision making; they normally require special funding; also may require human resources which are not readily available in most governmental departments. They are created for a variety of reasons amongst which are;

- a) Regulatory purposes; these are public corporations that regulate a particular social or economic sector on behalf of the Government i.e. such can set standards, periodic inspection, license e.g. Civil Aviation Authority.
- b) for strategic purposes e.g. NSSF
- c) Essential services that cannot be provided by the private sector
- d) For purposes of acting as a wheel for development e.g. UBC, Uganda Development Corporation(UDC), Coffee Marketing Board(CMB)

- e) For carrying out technical services e.g. Civil Aviation Authority, NARO.
- f) Commercial purposes.

Control of Public Corporations

-they are subject to administrative law, they exercise public powers which must be controlled;



1. Ministerial controls through appointment of policy making organs & management.
2. some Acts of parliament give Ministers power to approve budgets
3. Ministerial supervision and ensure compliance of government policies
4. Audits by the Auditor General
5. The doctrine of *ultra vires* where government officials must account for their responsibilities
6. Parliamentary controls through sectoral committees
7. Control through the courts; their decisions can be subjected to judicial review
8. jurisdiction of the IGG

Read cases of *Mukama v Wildlife Authority* & *Kabugo v UEB*

Administrative Tribunal

They include, inter alia, Land Tribunal, Uganda Communication Tribunal, The Tax Appeals Tribunal, The Industrial Court, Labour Dispute, Local Government (Evaluation), Advocates Act has a disciplinary committee of the law council, The Tertiary Institutions and Universities Act has a Staff tribunal. Find out on:

- why was that tribunal established
- membership, reasons
- procedure of tribunals
- powers of tribunals
- immunities & privileges

Administrative tribunals are judicial or quasi bodies. They are created under Acts of Parliament and delegated legislation. They are established for 3 main purposes:

- 1) Regulating & ensuring good administration of Government policy & legislation.
- 2) They resolve disputes between public authorities & individuals for the purpose of resolving disputes.
- 3) They can also resolve disputes between individuals e.g. land disputes, marriage disputes.

Advantages of Tribunals over Ordinary Courts

- They have benefit of experts in a particular field; some disputes require knowledge beyond the law e.g. medical practitioners are in a better position to judge cases of medical abuse.
- They are cheaper
- They use user-friendly procedures. In such cases, they may not need legal representation.
- Tribunals are not bound by the doctrine of precedent & they are given discretion to look at it for persuasive effect.

- They are faster in dispensing justice.

Disadvantages



- Lacks publicity
- Not procedural
- Easily pursued by Government

X-tics of Tribunals

- ❖ They are created by Acts of Parliament e.g. the Land Act creates Land tribunals, The Uganda Communications Act creates the Communications Tribunal, The Advocates Act creates the Disciplinary Committee of the Law Council, Evaluation Courts under the Local Governments Act, The Tax Appeals Tribunal under the Tax Appeals Tribunal Act, Staff Tribunal under the Universities & other Tertiary Institutions Act. Tribunals may also be known as Councils, Committees, and Courts.

Membership

Tribunals normally have membership reflecting:

-Reflection of membership with expertise e.g. Evaluation Courts have expertise in matters relating to land like valuers, lawyers.

-Normally, reflect interest groups i.e. the key stakeholders e.g. the Industrial Court is constituted with nominees from workers & employers.

-Disciplinary committee of tribunals normally has persons with the relevant professional qualifications.

-Professional qualifications. The Chairperson of a tribunal must be a person qualified to be a High court Judge.

-The Secretary of the tribunal is normally a public officer.

Appointments

The relevant Act of Parliament gives the mode of appointment. In some tribunals, the Minister appoints after getting nomination from stakeholders. Such appointments are normally for a specified time...renewed only on expiry.

Procedures

- There is no uniform procedure for all tribunals. Procedures may be contained in the relevant Act of parliament, Regulation establishing such tribunals.

Some Acts of parliament give tribunals power to regulate its own procedures. However there are some common things expected in the procedures derived



from principles of fairness & natural justice & such include:

- the right to be heard
- notice of proceedings
- the right to adduce evidence
- right to produce witnesses
- Procedures should be free from bias; by acting on evidence before them; public hearings unless the law provides otherwise.
- Tribunals normally have powers of the High court; to summon, examine witnesses, order production of documents, initiate contempt of court proceedings

In the case of *Suleiman v Seyani*; the court held that an Advocate cannot be sued for the words uttered during the proceedings in the tribunals, similarly members of the tribunal cannot take personal responsibilities for words uttered in the proceedings.

Appeals

Appeals of tribunals normally depend on the relevant Acts of Parliament. The usual avenues include appeals to the High court; it may also be made to appellate tribunals such as Court Martial. Appeals may be on matters of law or fact in accordance with the relevant Acts of Parliament. No appeals to the Field court martial.

PUBLIC OFFICERS

A public service is established to implement Government policies and executing relevant legislation made. It is composed of all persons holding office from permanent secretary.

Permanent secretary.

This office is created under Article 174; it gives specific functions to the permanent secretary; they are appointed by the president on the advice of the Public Service Commission. This Article gives specific functions; organization & operations of all departments; tendering advice; implementation of policies of the Government; also serves as the Accounting officer- to ensure that all expenditure is made in light of the procedures. Permanent secretaries can be removed in accordance with procedures of removal of other public servants but not the president even though appointed by him.

Public officers must be appointed by the relevant Public Service Commission's& public officers normally follow the transparent system of evaluation before appointment. Public service Act provides appointing procedures. *Kayondo v AG [1989] KLR*; the court emphasized that appointment



to public service must be evidenced in writing. *Mukisa V NRM Secretariat*; where the court said that public officers must be appointed by the relevant appointing authority.

Appointment to public service may be made on the following terms; temporary terms, probationary appointment; appointment on contract; permanent-where someone has successfully served probation terms.

Terms and conditions of service of public officers depend on the nature of their appointment are contained in the Government Standing Orders; they talk about salary, allowances, conduct expected of public officers, vacation of office, post-employment entitlement determined by the Pensions Act.

[Art 166 of cap 1]

Security of Tenure

Under common law there was no tenure, the principle was that all public officers held their office during the pleasure of the Queen. This principle was incorporated in the 1962 constitution; which provided that a head of state shall enjoy all prerogatives which were formerly enjoyed by the Queen as head of state and one was dismissal at will. This principle was affirmed in the *Opolot Shaban v AG* case; Opolot was removed from office as a consequence of the 1966 Constitution. He challenged Obote for removing him from Office. The AG invoked that prerogative and the court agreed that the president had powers to remove public officers at will. The Public Service Act, Standing Orders have elaborations which must be followed for a just cause; disciplinary action must be initiated by the appropriate officer; only in respect of breach of the law, standing orders or regulations; disciplinary action must be taken by the appropriate officer, statutory body; principles of natural justice must be observed; punishments must be those provided for under the law e.g. warning, reduction in rank, withholding salary increment, termination & dismissal

John Kiggundu Kato v AG [1992] KLR; John Kashaka Muhanguzi v AG
Article 28, 42 “any person appearing before any administrative official body or person has a right to just and fair hearing...that a person is granted right to courts of law”, Art 166 of cap 1 vests disciplinary powers in the relevant service commission.

Security of tenure may however be affected by the provisions of Article 166[2] of the constitution. The following policies have had effect on security of tenure

- *Retrenchment*
- *Downside-the deliberate process of using human resource needs*
- *Rationalization*
- *Wage ceiling*
- *Freeze on recruitment*
- *Restructuring*
- *Liberalization*

DELEGATION OF ADMINISTRATIVE FUNCTIONS.

KARIA V DHANANI (1969) E.A. 392

A Kampala firm was contracted to sell 50 tons of Ugandan mixed beans to a Kenyan firm. At the time of the contract, the exportation of beans from Uganda was prohibited except under license issued by the minister for commerce and industry. Before the beans could be exported, the seller received a letter from the ministry of commerce and industry canceling the license. The letter was written and signed for the permanent secretary by a departmental official. The issue was the validity of the cancellation of the license. The sellers argued that the contract was frustrated by the government ban; the buyers contended that the purported cancellation of the license was invalid. The trial judge held that the minister concerned could effect it.

On appeal the *sir clement de Lestang*, vice-president of the court stated that: “...any letter emanation from a ministry must...be taken to be the act of the minister and to convey his decision. It is common sense that a minister cannot do everything personally. ...the license was validly cancelled”

Duffus and law, Justices of appeal concurred.

CARLTONA LTD V COMMISSIONER OF WORKS AND OTHERS (1943)
2 ALLER 560
COURT OF APPEAL.

The appellant whose factory had been requisitioned under the *defense (general) regulation, 1939*, complained that the requisitioning was invalid on the grounds that there was no evidence that the commissioners, who were a competent authority within the meaning of the regulation, had themselves considered the matter. All he had received was a notice on the headed letter paper of the ministry of works and planning signed by an official on behalf of the first commissioner which stated that; ‘the department have come to the conclusion that it is essential, in the national interest to take possession of the premises occupied by you’.

Held

Lord Greene M.R “... it can not be supposed that that this regulation meant that in each case the minister in person should direct his mind to the matter. The duties imposed upon ministers and the powers given to ministers by responsible officials of the department... constitutionally, decisions made by of such an official, is of course, the decision of the minister

GODDARD AND DU PARCQ L. JJ. Concurred.

Appeal was dismissed with costs.

ODENDAAL V RECHARD GRAY (1960) E.A. 263 (COURT OF APPEAL)

A” memorandum of charges by deposit of title” in respect of the mortgage, had been duly executed and registered as required by the registration of titles ordinance



(CAP 160), on November 24 1955. upon this memorandum there was placed, on November 30, 1955, an officially stamped endorsement, under the heading “crown lands ordinance”

It was signed by “A. Drummonds, for the commissioner of lands”. It is conceded that the commissioner of lands himself was duly authorized by the governor, to consent on his behalf to the transactions.

Held; Power which is delegated can be entrust to another officer if the task is merely to that the person delegated to has performed an act duly authorized. the consent is sufficiently signified over the signature of a subordinate even though as hear the words used are “consent has here by been given” and not a “it is hereby notified that consent has been given” or similar words, so long as in fact consent has already been given by the person empowered to give it.

METROPOLITAN BOROUGH OF LEWISHAM V ROBERTS (1942) 2 K.B. 608

Court of appeal

The town clerk of Lewisham borough court applied to the ministry of health for authority to re-requisition a house under a regulation 51 of the defense regulation. In reply, he received a letter headed the “ministry of health” with the address of the regional officer of the ministry signed by Mr. J. O’gara, a general inspector in the ministry.

The defendant argued that the requisitioning was invalid, inter Alia because although the regulation expressly authorized the minister to delegate the exercise of his power to Mr. O’gara, the later did not have power to sub-delegate.

Held

Jankens j.

action through a departmental officials, is not a delegation of functions by the minister.

BUCKNIL and DENNING L.J.J delivered concurring judgments. Appeal was dismissed.

MUNICIPAL BOARD OF MOMBASA V KALA (1955) 22 EACA 319

. Without referring the matter to the appellant board or receiving authority to do so, the board’s municipal engineer and town clerk issued and served a notice to demolish a building upon the respondents, purporting to do so under a by-law. And the notice not being complied with, the board entered on the property and demolished the building. The board purported to ratify the notice.

Held: Macduff .j: that the engineer did not follow the established rules he must

have been aware of, in such a situation no subsequent ratification could validate the engineer's activities. Court held this to be tortious act against Kala.



ST. LORNARDS VESTRY V HOLMES (1885) 50 J.C. 132

A sanitary inspector of s. a metropolitan parish gave a notice in his own name as inspector to h, an owner of a house to reconstruct drains etc. in three days, and after words , on default, and did the work , and s, vestry took a summons against h. to recover the expenditure. No resolution of the vestry or of any committee thereof to give the notice was proved, but only a meeting of three members of the inspector should enter and execute the work himself:-

Held; the notice given by the inspector was bad, and the statute not being complied with, the summons against H was properly dismissed.

JUDICIAL CONTROL OVER DELEGATED LEGISLATION PROCEDUARL ULTRA VIRES

R V WAKISO ESTATE (1955) 7 U.L.R 137

The respondents were charged with contraventions of the Ugandan Employment Rules. The rules alleged to been contravened were made under paragraph (1) of section 80 of the Uganda Employment Ordinance, cap 83, and therefore the proviso to section 80 applied to them. That proviso reads as follows: “provided that rules made under paragraphs (1), (2), (3), and (15) shall be laid before the Legislative council and shall not come into operation until they have been approved either with or without modification by resolution passed by the legislative council” the learned magistrate in his very careful judgment held that the meaning of that proviso was that rule which required approval could not be laid before the legislative council and approved or modified by the council until they had been made by the governor. He further held that having regard to the citation which appears at the end of L.N. 100 of 1946, the rules had been made by the governor after their approval by the legislative council, and that consequently the procedure prescribed by the proviso to section 80 had not been complied with and that this omission was fatal to their validity.

The citation referred to reads as follows: -

made at Entebbe this 21st day of May, 1946, and approved by resolution passed by the legislative council on the 30th April, 1946 J, Hathorn Hall, Governor.”

Held: Bennett J. “...the language of the proviso was clearly designed to give the last word to the legislative council. It follows that if the rules are approved the legislative council before the being signed by the governor, the procedure prescribed by the proviso has not been complied with.

There was no evidence...that the rules were made on a date other than the date on the legal notice, and I am not disposed to speculate as to the date upon which they were signed by the governor.”

The appeal is dismissed.

FAILURE TO PUBLISH.



MWANGI V R 1950 24 (1) K.L.R. 72

This appeal by way of case stated from conviction in the special magistrate's court Nairobi, of overcharging in respect of a service, namely hair cutting, contrary to regulation 11(1) of the defense (control of prices) regulation, 1945.

Government notice no 914 of 17th September, 1948, which was published in the government gazette empowered the controller to fix by order a maximum charge for any specific service. In this order the controller proceeded to do so for the service which he described in the schedule to the order as "hair dressing (male and female)" in the schedule other services are listed, and in the main body of the order it is prescribed that in the case of a business established before 1st January, 1948, no higher charge can be lawfully made for any service scheduled than was a lawful charge in respect of the same service in 1947. the accused went in to business in 1947.

The controllers order dated 1st January, 1949, which is headed no 1 1949. the controller did not publish this order in the gazette.

The price controller did not publish order no 1 1949 in the government gazette.

Held:

There was no statutory obligation on the price controller to publish any of his orders in the government gazette, all his duty is to "cause notice of the effect of such order to be given as soon as may be in such a manner as he thinks necessary for bringing it to the notice of all persons who in his opinion ought to have notice of the order.

If he does select the government gazette, however then he cannot amend, vary, rescind or revoke any order so published without again using the same medium, namely publication in the government gazette.

The order although not purporting to vary the government notice 914 of 1945 (which the controller may have thought repealed) does in fact vary the price which a section of the hair dressing trade in Nairobi may charge and that therefore it can have no effect because it was not a variation made in the manner in which the order varied as made namely by notification in the government gazette.

Procedural defect related to publicity of the relevant order had not been produced in the manner expected, such an order was invalid.

the two accused committed no offence and they were wrongly convicted, the convictions were quashed.

REGINA V SHEER METALCRAFT LTD (1954) 1 A.B. 586.

Kingston-upon-Thames Assize

Sheer metal craft and their managing director were charged on an indictment containing fourteen counts of infringements of the iron and steel price order, 1951 (S.L. 1951, NO 252). It was contended on their behalf that the order was not a valid statutory instrument because the schedules to it, which were an integral part of it and

which set out the maximum prices had not been published with the instrument when it was printed by the queen's printer, as required by section 2(1) of the Statutory Instruments Act, 1946, although the minister had not certified under regulation 7 or the statutory instrument regulation, 1947 that the printing was unnecessary. It was argued for the



crown that this omission did not invalidate the instrument but merely made it necessary for the crown, in accordance with section 3(2), to prove that the purport of the instrument had been brought to the notice of the public or those to be affected by it or the persons charged.

Held:

For a statutory instrument to be valid it is not necessary for it to pass through all stages namely; making the laying before parliament, the printing and the certification of that part of which it might be unnecessary to have printed. The making of an instrument is complete which it is first of all made by the minister concerned and after had been laid before parliament. When that has been done it then becomes a valid statutory instrument, totally made under the provision of the acts.

The instrument was validly made and approved and signed on behalf of the minister on its being laid before parliament. The fact that the minister failed to certify under the regulation does not invalidate the instrument as an instrument but lays the burden on the crown to prove that the date on the alleged contravention reasonable steps had been taken for bringing the instrument to the notice of the public or persons likely to be affected by it. The rule was admissible.

SUBSTANTIVE ULTRA VIRES

INCONSISTENCY WITH FUNDAMENTAL PRINCIPAL OF LAW.

NANALAI DOMODAR KANJI V TANGA TOWNSHIP
AUTHORITY (NO. 2) 1940 (1) TLR @ 239

MCROBERTS, J: - this is an appeal by way of case stated by the learned resident magistrate of Tanga upon a question as to the interpretation of rule 25 of the township rules. and of the sufficiency of the evidence taken in his original criminal case no 394 of 1939.

The appellant owned a house which was situated at the corner of Akida and no 6 street in the township of Tanga and that on the 12th June 1939 a lot of old papers were found in the streets outside his house. He pleaded not guilty by upon the above fact being shown he was convicted. It was not proved that he had put the papers there or caused them to be put there.

Held:

“That so much of Rule 25 of the township rules lays down that: ”any such accumulation being immediately in front of any house shall be prima facie evidence that the same had been thrown there or deposited by the occupier of such house is ultra vires.”

so strong is the presumption of innocence, that even when guilt can be

established only by proving negative, that negative must in most case to which no special statute is applicable, be proved, though the general rule of law devolves the burden of proof on the party alleging the affirmative.”



It was held that the second portion of rule 25 namely “any such accumulation being immediately in front of any house shall be prima facie evidence that the same has been thrown there or deposited by the occupier of such house” is ultra vires and of no effect...

Appeal was allowed.

CHESTER V BATESON (1920) 1 K.B. 829.

A regulation was made under the realm consolidation Act 1914. It gave the munitions minister power by order to declare an area special so as to prevent the ejection of munitions workers work so as to prevent impediment, delay or restriction of that work. It prevented persons without consent of the minister, to take any proceedings for a decree or an order to eject a tenant from a dwelling house or other premises situated in the special area as long as the tenant continued to pay rent and observe tenancy conditions. Contravening of this regulation made one guilty of an offence.

Chester let a dwelling house to Beatson, ammunition worker, on the expiry of the tenancy, Beatson refused to give up the property. Court held that they had no jurisdiction since Beatson was a munitions worker and Chester had not got consent from the Munitions Minister.

Held: DARLING. J.

The regulation not only deprives the subject of his ordinary right to seek justice in courts of law but provides that merely to resort there without permission from the munitions minister first had and obtained shall of itself be a summary offence and so render the seeker after justice liable imprisonment or fine. The regulation denied legal redress to the property owner.

AVORY AND SOMKEY J.J. delivered concurring judgments
Appeal allowed cause remitted to justice.

COMMISSIONER OF CUSTOMS AND EXCISE V CURE AND DEELEY LTD (1962) L.Q.B. 340

The finance Act 1940 33 (1) gave commissioners power to make regulations.

The commissioners made regulation 12 of the purchase tax regulation, 1945

“if any person fails to furnish a return as required by these regulations and furnishes an incomplete return the commissioner may, without prejudice to any penalties which may be incurred by such person, determine the amount of tax appearing to them to be due from such a person and to be paid within seven days of such a demand unless within the time it is shown to the satisfaction of the commissioners that some other amount is the proper tax due with other amount shall immediately be paid to the commissioners.”

Held.

The Regulation 13 is ultra vires on three distinct grounds in law though they overlap on so far as they may be different ways of expressing results of certain facts:



Firstly, it is no part of the function assigned to the commissioners to take upon themselves the power of the high court judges and decide issues of fact and law as between the crown and the subject.

Secondly it renders the subject liable to pay such taxes as the commissioner believes to be due, where as charging section imposes a liability to pay such taxes as in law is due.

Thirdly it is capable to excluding the subject from access to the courts and defeating pending procedure.

The last is a distinct ground...not least because there is nothing in the regulation to preclude the commissioners from making determination of a transaction whilst proceedings are pending in either the high court or a declaration or for the determination of a case stated on section 21 arbitration.

...Thus enables the commissioners to oust the subjects' rights to have issues determined in court not only before relevant proceedings are commenced but whilst they are pending.

Judgment for the defendants

MAY V POWELL (1946) 1 K.B. 330

A by law made by the county council pursuant of the provisions of s. 23 of the municipal corporation Act 1882 provided:

“no person shall frequent and use any street or other public places either on behalf of himself or other persons for the purpose of book making or betting or agreeing to bet or wager or paying or receiving bets” “public place” was defined as including any common, public park, pleasure ground, roadside waste, foreshore, church yard or chapel yard, or any open space to which the public have access for the time being.

Held: the by-law was ultra vires to county council on the grounds that it was repugnant to the general law of the land as contained in the street betting act 1906, section 1 sub 1(4) and betting and lotteries Act, 1934, 52 sub 5(1)

INCONSISTENCY WITH THE PARENT ACT

KOINANGE V R (1951) 1 K.L.R. 130

The rule was made under the crop production and livestock ordinance which gave the governor power to make rules for the improvement and control or crop production and live stock.

The rule was that Africans could not grow crops outside lands named in

schedule A (native lands which were occupied by only Africans.).

The appellant, African is charged under the rule with growing coffee outside the scheduled area: so by rule 3(1) he is placed under restriction inapplicable to Europeans or Asians who may plant and maintain coffee plantations outside the native lands.

Held;



This was inconsistent with the coffee industry ordinance cap 201 13(5) it provided that any person may plant or maintain any coffee plantation provided he is in possession of a license. If any African planted coffee plantation outside the “native lands” and was not in possession of the necessary license, he would have committed an offence contrary to section 13(1) of the ordinance, punishable under section 21 and though the African Grown coffee rules 1949, which thus seen to come into apparent conflict with the ordinance (cap 201)

“... the rule purports to impose a restriction upon a particular person ...African... in the opinion of the court the rule is clearly ultra vires...:

Appeal is allowed and conviction set aside.

RANGER V GREENFIELD 1963 R&N 127 (F.S.C)

Ranger was granted a residence permit in 1956 to enter, reside, and take up employment in the late federation. The permit was subject lecturer for not less than two years.

1963 Ranger was deemed a prohibited immigrant. He asked the court to declare the notice so deeming him, null and void on the ground, inter alia, that he had acquired domicile in the late federation and so could not be a prohibited immigrant under the provisions of the Immigration Act 1954. This raised the question of the validity of regulations, under which his residence permit had been issued, made by the governor-general under the authority of the act

held:

CONTROY C.J.NN.

The only relevant authority for the imposition in residence permit is under section 24 for the Act. This is an enabling act which gives the governor general a general power to make regulations for further controlling, restricting or prohibition entry of persons in the federation. In addition to this general power it sets out specific matters with which such regulations may deal. In particular, Para.(d) of sub section (1) of section 24 empowers such regulations to provide regulations to provide for the prohibited of the entry of persons seeking employment in the federation except on such occupations and subject to such conditions as may prescribed.

Turning to the regulation we find that regulation 11 provides that “A board may make it a condition for issue of any residence permit that the holder shall not until he has acquired domicile in the federation engage in any occupation other than that stated in such permit without the approval of the Salisbury board. Under section 3 of the act, a man can not acquire domicile while he is residing in the federation under conditional a permit. Regulation 11 provides that conditions in permits shall continue until an immigrant has acquired a domicile. The two provisions are mutually

exclusive in that an immigrant cannot free himself of the condition until he has acquired domicile, and he can not acquire domicile while he is subject to the condition.

...I find my self in very considerable doubt as to whether I should fill the lacuna in the regulation by the judicial legislation. As this involves the liberty of the subject I must



resolve my difficulty in favor of the applicant and not correct regulation 11... in order to preserve the validity of the regulation.

UNREASONABLENESS

KRUSE V JOHNSON (1898) 2 Q.B. 91

Divisional court.

A by-law was made under section 16 of the local government Act, 1888, which provided that:

‘no person shall sound or play any musical or noisy instrument or sing in any public place or high way within fifty yards of any dwelling house after being required by any constable, or by any inmate of such house personally, or by his or her servant, to desist’. The appellant, Kruse, had been conducting an open-air religious service and had continued to sing a hymn after a constable had required him to stop. He was convicted under the by-law.

In this case Lord RUSSELL OF KILLOWEN C.J. said, “...in this class of case it is right that the courts should jealously watch the exercise of these powers and guard against their unnecessary and unreasonable exercise to the public disadvantage...justice ought to be slow to condemn as invalid any by-law, so made under such conditions, on the ground of supposed unreasonableness”

The test for unreasonableness was laid down. Laws may be found unreasonable for instance (1) if they were found to be partial and unequal in their operation as between different classes; (2) if they were manifestly unjust; (3) if they disclose bad faith; (4) if they involved such oppressive or gratuitous interference with the rights of those subjected to them as could find no justification in the minds of reasonable men. The courts might as well say, parliament never intended to give authority to make such rules, they are unreasonable and ultra vires.’ But it is in this sense, and in this sense only, as I conceive, that the question of unreasonableness can properly be regarded.

He rejected the objection that the by-law was bad because it was not confined to cases where the playing or singing was causing annoyance.

Affirmed the conviction without costs

CHITTY L.J., WRIGHT, DARLING AND CHANNELL J.J. Concurred.

AMBIGUITY AND UNCERTAINTY

R. V HERMITTE 1938 18 KLR 55.

The appellant was convicted and fined under a by-law made under section 69 of the local Government (municipalities) ordinance, 1928. "no person shall create any disturbance so as to be annoyance to any resident or passenger". It was contended that the by law was ultra vires because it was uncertain.



Held; after close scrutiny of the language of other by-laws made by the municipality, the court was unable to say in what circumstances and in what place, (whether public place or private residence) a disturbance would fall within the meaning of the by-law. Nor was it able to say what disturbance was contemplated. This state of mind was found to be a strong argument in favor of the contention that the bylaw was invalid. The by-laws was found to be wide and unreasonable.

The appeal was accordingly allowed, the by-laws pronounced ultra vires, and the conviction quashed.

UNAUTHORIZED SUB-DELEGATION.

REMTULIA FULAMANI V R (1936) T.L.R. ® 203

The appellant was convicted for breach of a rule 11 of the cotton rules, 1931. the rule reads as follows:

“the director of Agriculture may from time to time fix by notification in the gazette a date prior to which all previous seasons cotton plants and residues and all plants declared by in the said notice to harbor the pests and diseases of cotton shall be uprooted and burnt. All cotton plants and cotton residue shall be burnt prior to such a date.

The appellant failed to comply with the terms of the notice by the named date.” HELD ;

Rule 11 does not its self provide for the destruction of plants it mentions. It provides for their destruction if the director of Agriculture fixes a date there of by notice. The consequence of this wording is to create in addition to the governor, another legislative authority whom discretion effects the destruction of the plants.

R V JAN MOHAMED (1937)17 (1) K.L.R. 108

The applicant was convicted of an offence under rule 12(3) of the native produce improvement and inspection rules, 1936 in that on 24/4/37 at Runenje’s he purchased maize which had not been inspected. The rule in question (so far as material is s follows:

12 (1). The director may, by notice in the gazette, specify areas from which no produce specified in such notice shall be removed except after inspection at one of the places to be named in such notice...

(3) no produce shall be sold or purchased at or within three miles of any place of inspection specified in a notice under this rule until such produce has been inspected at such place.

The crop produced and live stock ordinance, 1926, under which the rule was made, consists of five sections only, of which the first three deal with the short title of the ordinance, its applicable and the definitions, while section 5 provides the penalty

for breaches of the rules; the sole remaining section provides.

“The governor in council may from time to time make rules which shall be applicable to such area or areas or may be named there in for the following purposes:”



and there follow a number of purposes including”(g) the inspection of any crop or agriculture produce.”

Without going further, it is plain, in our opinion, that this rule is ultra vires. The section under which it was made requires that the area to which the rules are to apply is to be “named therein” –i.e. to be named by the governor in council- but by rule 11 the governor purports to delegate to the director of agriculture the power of specifying the area to which the rules relating inspection apply, and this is repeated in section 12(1), which we have quoted above. By contrast rule 4 properly prescribed that areas to which the rules relating to improvement apply. Section 13 of the interpretation ordinance (cap 1), while it gives to the governor certain power to delegate his authority, expressly denies him the right to delegate his rule making power, and still by the governor in council there is any power of delegation.

The conviction is quashed and it is ordered that the fine if paid, be refunded to the applicant.

SOHAN SING V REX (1951) 6 K.L.R. 270

The appellant was convicted for failing to comply with an order given by an immigration officer purporting to act under section 12(1), immigration (control) ordinance, 1957. he was convicted and fined.

Regulation 33 empowered the principle immigration order to decide persons who were and were no prohibited immigrants. It was argued for the defendant that the regulation 33 did not give the governor power to extend authority to make an order when the ordinance already vested such authority with the governor. The court agreed with this argument.

Held: powers to deport the prohibited immigrants was given to the governor, it did not empower the governor in council to make regulations which would have the effect of delegating his powers to make a deporting order.

JUDICIAL REVIEW

HASHAM SULEMAN AND ANOR V N.R. SAYAN (1963) E.A. 603

The plaintiff company were public transporters, the defendant, an advocate representing a rival transport business, during a public licensing authority session applied for renewal of his clients license to run a road transport service along the same route as the plaintiffs, who objected. In reply to the objection the defendants accused the plaintiff of not being,”such a reliable operation and financially stable”.

The plaintiff filed an action for defamation and the defense pleaded inter alia, absolute privilege, or alternatively qualified privilege. At the trial the defendant admitted having said most of the words attributed to him and that in view of

information he had just received, they were defamatory. The issue at the hearing was whether the occasion was one of absolute or qualified privilege.



Held: the defendants were entitled to qualified privilege not absolute because the tribunal was not quasi judicial either by the procedural resemblance to courts of law and its function was administrative not judicial.

It was also held that the plaintiff had not spoken defamatory words with express malice because the defendant did not know them to be untrue, they were not actuated by spite or anger or unreasoning prejudice, or there was no indirect motive nor was it inappropriate to the occasion.

The suit failed, action was dismissed with costs.

YATES V VEGETABLE SEED COMMITTEE

The plaintiff made a claim that vegetable seed committee made orders which were alleged to solely to protect and further trading and financial interest of the committee and provide relief of from the competition from seed merchants. The plaintiff claims a declaration that the orders were made mala fide and capriciously in relation to any relevant power given to the committee by the under said regulation. It was said that orders made by the committee were legislative in nature conferred by regulation 14 and court cannot inquire into the motive actuating a legislative body.

The regulation provided that the regulation shall be administered for the purpose of securing an adequate supply of vegetable seeds in Australia which are true to type and of a satisfactory standard of parity and germination and that those seeds are effectively distributed.

The order contained a general prohibition against selling the commodity except with the approval of the body.

Held:

The enactment of a law cannot itself give any cause of action to a person who is injured by the operation of the law they have no remedy for any injury consequently suffered unless law provides for some form of compensation when the law is valid. If however acts are done under the possessed authority of an invalid law and those acts constitute a wrong or a breach of contract then the invalid law does not provide any defense to the person acting under it.

The vegetable seed committee was held to be an administrative not a legislative body. The complaint that the order is a product of an improper or inadmissible purpose does not depend upon an imputation of motive bearing on their private and personal interest actuating individual members to give their concurrence in orders. It relates to the effect upon the affairs of the body itself. The effect which it was sought to achieve means of the orders.

The object ascribed to it in making the orders is outside the purpose for which it was set up and in variance with it. That purpose forms a condition to which the exercise of the power must conform.

The gist of the allegation is that the determination of the vegetable seed

committee to make and serve on vegetable seed merchants the committees financial and trading interests and excluding competition...



KENYA ALUMINUM AND INDUSTRIAL WORK T.T. V MINISTER OF AGRICULTURE (1961) E.A. 246

An appeal from a judgment of the Kenyan supreme court sitting in Mombasa where the appeal to the supreme court a refusal by the minister of agriculture to grant permission to the appellant to make addition to his machines in order to increase his output capacity was dismissed with costs.

Held: the onus on the appellant to satisfy the appellant with that the decision appealed was wrong.

The policy of a particular legislative measure may have to be considered by court when the construction of some part t the measures in under consideration.

Evidence was the minister took into account factors forwarded by the appellant. He rejected these as insignificant in comparison with what he regarded as the paramount importance of the policy in public interest.

“... Each case must be considered on its merits,.. there must be I think, must be evidence indicate that the importance of the policy to the public was that very cogent grounds must be adduced to justify departure from it.

The company did not show exceptional grounds to deviate from the government policy .

The appeal was dismissed with costs

KARIMARI CONNER BAR AND RESTRURANT V EMBU LIQUOR LICENSING COURT (1969) E.A. 426

Here a statute provided that the person who is refused to renew or transfer a liquor license may appeal against the decision of the liquor licensing board. In the instant case the complainant was refused a license and the statue provided for an appeal against a refusal to grant.

Held;

The complainant could appeal on other grounds, he could only apply for review on grounds of refusal since he could not appeal.

MADAN J. This is an against the refusal by the embu liquor licensing court to grant the appellant a new liquor license described as “ Night Club Liquor license.” No license of this description appears in the schedule to the liquor licensing act, which sets out licenses of the several descriptions which may be granted under the act. The appellant’s application was for the grant of a proprietary club liquor license, as stated by his counsel.

The appeal is brought under section 18 of the act which reads as follows:- “18 (1) any application whose application to review or transfer a license has been refused may within twenty- one days of such a refusal appeal

against such refusal to the supreme court.

(2). The supreme court on an appeal under this section may confirm the refusal or may grant the renewal or transfer in the same way as the licensing



court could have granted it, and the judgment of the supreme court on such appeal shall be final.”

It will be immediately noted that there is no right of appeal against a refusal to grant a new license. The right of appeal is restricted to appeals against a refusal to renew or transfer a license. In my opinion no appeal lies to the high court from a decision of a licensing court refusing to grant a new license.

The appellant’s learned counsel submitted that the court should entertain the appeal under its inherent powers; in the alternative, that section 18 be interpreted to include a right of appeal against refusal to grant a license. I am afraid not. The right of appeal is created by statute. The court may not go beyond the limited wording of section

18. had parliament intended to confer or create such a right of appeal, it would have said so expressly as for example in England where under section 21 of the licensing act 1964, a right of appeal is expressly given to any person aggrieved by a decision of the licensing justices granting or refusing to grant a new justice’s license. It is an omission in our law which I would say should be remedied. But until that is done by parliament to appeal lies to this court from a refusal by a liquor licensing court to grant license.

Appeal dismissed with costs.

PRINCIPAL OF ULTRA VIRES

AUTHORITY NOT PROPERLY CONSTITUTED

VULAMHISEIN PARDHAN AND SONS V HOUSE TAX ASSESMENT COMMITTEE, LINDI (1954) 2 T.L.R 255

This is an appeal against the refusal by the lindi house tax assessment committee of an objection taken by the appellant against the entries in the respect of a house.

The reasons for appeal were that; the committee did not keep records and did not give reasons for the decision, it was ultra vires due to lack of quorum. When the appellants objection were heard, the full committee met to consider grounds in advance, re-inspected the premises and pronounced their decision,

Held: there was no provision in the ordinance for quorum. No detailed rules as to the manner in which the assessment committee should conduct its inquiry, it’s open to the committee to decide its own procedure.

DENT V KIAMBU LIQUOR LICENSING COURT (1968) E.A. 80

The appellants’ application for renewal of her liquor license for her private club

was denied on grounds that; it was difficult for men in charge of security to check the club because C.D cars were seen there, it was a rural area and locals could not afford the amount of the membership fee. Evidence was given by one of the members of the tribunal that he had been denied drinks on his visit to the club, and was asked to pay a temporary membership fee before he could be served.



Held; no evidence had been given to show difficulty encountered by the police or other security forces in regard to ascertaining persons visiting the club which was enabled by the act that officers not below the rank of inspector may enter and inspect without written permission any licensed premises. In declining to give non members alcohol, she was compiling with the provisions of the acts. Clubs were founded on sharp line of discrimination between members and non members.

There was also some procedural irregularity. None of the facts court based its decisions on was formally proved in evidence. The liquor licensing act requires that the court maintain records of proceedings which were overlooked. A member of the court gave evidence which was entirely improper if he is participating as such a member.

The respondents failed to furnish the appellant with a copy of their decision; no copy of the licensing court order was ever furnished

Appeal allowed, decision of the lower court set aside, license renewal granted.

DOING THE WRONG THING.

MUNICIPAL COUNCIL OF BROKEN HILL V PATEL

The respondent wished to re-construct a building under the jurisdiction of the authority to establish a bar. In order to apply of a liquor license, to get a certificate from the municipality to the effect that his plans to reconstruct had received the approval of the said municipality, which had power to consider and approve or refuse buildings for reasons of public health instead of considering the application on the grounds of their merit, they refused the application on the grounds that inter alia that the establishment of a bar conflicted with council's policy that there should be no more bars established in broken hill. An order of mandamus was obtained in the high court calling for the council to consider the application for approval of the building plans on its merit. On appeal against the order it was argued "that a respondent had a remedy under section 13 of the interpretation ordinance the high court should not have exercised its discretion.

Held:

Consideration of one application on merit does not necessarily imply that other applications were considered on merit, this is particularly so where one application is granted and the other refused. The respondent's application was arbitrarily refused and not considered on merit.

Appeal dismissed.

PADFEILD V MINISTER OF AGRICULTURE AND FISHERIES AND FOOD

The complaint was that the board's terms and prices for milk did not take fully

into account variations between producers and costs of bringing the milk to the liquid market. The price differentials were disadvantageous and worked unfairly against producers in the eastern region where milk was more valuable where there were lower transport costs and higher land prices.

The minister declined to refer the matter to the committee citing that his main duty had been to decide the suitability of the complaint for such investigation and that he had unfettered discretion and that if the complaints were upheld by the committee he



might be expected to make a statutory order to give to the committees recommendation.

Held;

(Lord Morris dissenting)

The matter would have been remitted to the Queen's Bench division with a direction to require the minister to consider the appellants complaint according to the law.

I(a) (per lord Reid c.f. lord Pearce)

Where a statute conferring a discretion on a minister to exercise or not to exercise power did not expressly limit or define the extent of his discretion and did not expressly limit or define the extent of his discretion and did not require him to give reasons for declining to exercise power, his discretion might never the less be limited to the extent that it must not be used, whether by reason of misconstruction of the statute or other reasons, as to frustrate the objectives of the objection of the statute which conferred it.

b. (per lord Hudson and lord Upjohn)

Although the minister had full or unfettered discretion he was bound to exercise it lawfully viz not to misdirect himself in law, nor to take into account irrelevant matters, nor to omit relevant matters from consideration.

c. the complaint in the present case was a substantial and genuine complaint, neither frivolous, repetitive nor vexatious of the minister for not referring the matter to the committee of investigation (that complaint raised wide issues, that his discretion was unfettered so that, in effect it was sufficient that he should bona fide have considered the matter) were not good reasons of law and indeed left out of account the merits of the complaint and showed that he was exercised this discretion in accordance with the section of the act.

iii. the fact that a minister gave no reasons for his decisions, whether or not to exercise discretionary powers conferred upon him by statute, would not prevent court from reaching a conclusion in a proper case that a prerogative order should be issued.

Appeal allowed.

WESTMINSTER CORPORATION V LONDON AND WESTERN RAILWAY [1905] A.C. 426 (HOUSE OF LORDS)

The appellant constructed a public lavatory and conveniences in the middle of the street underground far removed as possible from buildings on both sides, the respondents owned a valuable block of buildings with valuable vaults under the pavements on that street. They (the respondents) objected to the work by the sanitary work to be constructed by the corporation and sought to have them removed.

The corporation relied on their statutory powers which authorized them to construct such public sanitary conveniences and vest in them for the purpose of subsoil of the roads, exclusive of the foot way.

Held: when a public body is exercising statutory power conferred upon it for the benefit of the public it is bound to have some regards to the interest of those who may

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suffer for the good of the community. People whose interests are affected by the plans of the public body should be made aware of these plans.

The respondents knew what the appellants were doing by chose to stand aloof even at the trial when an injunction could have been sought so as to alter the plans and deal with the inconveniences.

Appeal was allowed

Earl of Halsbury l.c. and lord Lindy delivered concurring judgments Lord James dissented.

LACK OF EVIDNECE

CLAN TRANSPORT V SWIFT TRANSPORTS AND OTHERS, CLAN TRANSPORT V RHODESIAN RAILWAYS AND ANOTHER (1956) R & N 120 (F.S.C.)

The board, a public body possessing discretionary powers to grant or refuse road service permits. In spite of opposition by objectors, granted two road service permits to the appellants. The objectors brought the matter under review under common law before the high court which set aside the grant on grounds that the boards decision had been unduly influenced by unwarranted findings for which there was no evidence, that there was a planned refusal by other permit holders to cooperate with clan company in the matter of certain through traffic over specified routes, finding to which reasonable men could not have come. Clan Company appealed.

Held:

The court can interfere; the decision is so unreasonable that no reasonable authority could have ever come to it. Although the local authority kept within the four corners of the matter they ought to consider.

There was no evidence of total lack of corporation. There was no evidence to show scot was not cooperating. Where there is no evidence at all for a finding, the court will easily make the inference necessary for interference.

Unreasonableness of the board in acting on a reason which was not proved at all provided no inference of mala fide or ulterior motives.

For the same reasons, unreasonable findings do not show that members of the board did not apply their minds to what they had to consider.

Appeal allowed

IRRELEVANT CONSIDERARIONS AND UNREASONABLENESS

Re- an application by Bukobu Gymukama [1963] E.A.

JIMMY FANCECA V E.A AMORLIA [1957} E.A.263

The respondent land lord applied to a rent regulation board to have the standards of a certain premises determined and also for an order for recovery of arrears which was done. The appellant claimed the determination of the board was not supported by reasons and that the discretion vested in the board was not judicially exercised.

Held:

Mahon. J.



While it may be desirable, particularly when an application is strongly contested, for a board to set out the reasons for its decisions, there are no statutory requirements as far as am aware task to the form which the decision of the board should take.

To exercise discretion judicially there must be at least the consideration of all relevant facts.

It can not be said that because the board did not give reasons for its decision, it offends natural justice.

FARNDAYS V KERicho LIQUOR LICENSING COURT [1968] E.A 640

This is an appeal from a decision of kericho liquor licensing court refusing the renewal of a general retail liquor license of the appellant, because he was not a Kenyan citizen.

Held:

Fit and proper personal qualities of the person should have been considered not his national status.

The grounds on which the appellant's applications were not granted were irrelevant. They were not provided for in the statute.

ROBERT V HOPWOOD [1952] A.C. 573

A statute empowered council to employ such servant s "as may be necessary" and "allow servants such a wage as the council may think fit. Another statute imposed a duty upon the district auditor to disallow any item of account contrary to law and surcharge the same on the person making or authorizing the making of the illegal payments. A council decided to pay and paid a minimum of 4 pounds a week as wages when in fact the cost of living had fallen. The district auditor disallowed the expenditure and surcharged he councilors responsible.

Held:

The discretion conferred upon the council by the statues must be exercise reasonably, and that by fixing the council of any arbitrary sum for wages without regards to existing labor conditions was not exercise of that discretion.

Expenditure upon a lawful...might be so excessive as to be unlawful and that to the extent by which the amount exceeded legality the author was bound to be disallow it and surcharge the excess upon the person responsible. Therefore the disallowance of surcharge c.a. kbb

Reversed.

ASSOCIATED PROVINCIAL PICTURE HOUSES LTD V WEDNESBURY CORPORATION [1948] 1 K.B 223

A local authority granted to the plaintiff leave for Sunday performance subject to conditions that no children under 15 years of age be admitted to Sunday

performance with or without an adult.

Held;

That the local authority had not acted unreasonable or ultra vires in imposing the conditions.



In considering whether an authority so unlimited a power has acted unreasonably, the court is only entitled to investigate the action of the authority with a view to seeing if it had taken into account any matter that ought not to be or disregarded matters that ought to be taken into account. The court can not interfere as an appellate authority to override a decision of such an authority, but only as a judicial concerned to see whether it has contravened the law by acting in excess of its powers.

BAD FAITH

OKINE AND OTHERS 1959 G.L.R.

Okine and 35 others were served with orders under the preventative detention act 1968 where “the governor General may order the detention of any person who is a citizen of Ghana if satisfied that the order is necessary to prevent that person from acting in a manner prejudicial to the defense of Ghana/ its relationship with other countries and security of the state.

They appealed for the writ of habeas corpus. They argued bad faith, alleging that they been arrested and detained, not for reasons given by the government, but merely in order to suppress and silence the opposition party.

HELD; the only matter that court be inquired into was legality of the detention because where a regulation of this kind commits to an executive authority, the decision of what is necessary or expedient and that authority investigates the grounds of reasonableness of the decision in the absence of bad faith.

Error of law on the face of records

R V NORTHUMBERLAND COMPENSATION APPEAL TRIBUNAL EX PARTE SHAW [1951] K.B. 711

held

The divisional court has jurisdiction to quash by certiorari the decision of an inferior tribunal where the latter has embodied the reason for its decision in its order has made “a speaking order” and those reasons are bad in law. Certiorari is not a remedy which can be granted only where an inferior tribunal has acted without or in excess of its jurisdiction.

Where a decision of the court of appeal is inconsistent with an earlier decision of the House of Lords which was not cited to the court of appeal it is the duty of the divisional court to follow the decision of the House of Lords.

R V MEDICAL APPEAL TRIBUNAL EX PARTE GILMORE [1957] 574.

The council made an award for an eye injury which went against a regulation.

The regulation made it clear that once the council accepted aggravation to one eye, they ought to access the disablement not only for the left eye but also for the right eye. They were not at liberty to reduce the award because of their doubt on aggravation any more than a judge is at liberty to reduce damages because of his doubt on liability.



The main issue was whether the error of the tribunal appeared on the face of the record.

Held; it did not appear on the face of their adjudication. The tribunal gave an extract from a specialists report, thereby making that report part of the records. The specialist report with the record gave the council full facts about the previous injury to the right eye and the subsequent injury to the left. No reasonable person who made regard to the regulation could have come to such a conclusion. They fell into error in the point of law.

Facts could have been acquired by ordering the tribunal to complete the record by finding the facts as they are required by regulation to do so. Court has always had power to order inferior tribunals to complete records. A tribunal could defeat a writ of certiorari unless the court could order them to complete or correct an imperfect record, the courts have power to give such orders.

The remedy of certiorari is never to be taken away by any statute except by the most clear and explicit words. The word final is not enough, that means “without appeal” it does not mean “without recourse to certiorari. It makes the decision final on ‘the fact’, but not final on law. Not with standing that the decision is by a statute made “final”, certiorari can still issue for excess of jurisdiction or for error of law on the face of the records.

It was open to the court to issue a certiorari to quash it for error of law in the face of the records.

Order of certiorari issued to quash the decision.

NATURAL JUSTICE

RIGHT TO A FAIR HEARING.

DHUNJIDHOY POSTWALIA V SECRETARY OF STATE [1898] ` E.A.L.R. 8

The plaintiff was engaged by the agent of the railway in India as a crane driver for the local motive department. It appears he did not do his work to the satisfaction of his immediate supervisor and was fined for negligently burning some fire bars.

Subsequently “bing” overheated and caused serious damage while the plaintiff was not duty presumably from his negligence, which he (the plaintiff) denied.

The locomotive superintendent reported the case to the chief engineer and recommended the dismissal of the plaintiff. A letter was written on behalf of the chief engineer dismissing the crane driver. The crane supervisor wrote to the plaintiff informing him that his services were no longer required.

Held; the fundamental rule of all judicial proceedings that an opportunity must be given to a party adversely affected to state his case to the judges and to cross examine the witnesses who give evidence against him. And it appears clear no such opportunity was offered in this case which was admitted by the ***** the chief

engineer did not exercise his function as a judge by not giving the plaintiff a chance to defend himself no matter how clear cut the case against him may seem.

The plaintiff was not properly dismissed.

The chief engineer acted solely on the report of the crane supervisor.



Judgment for the plaintiff with costs.

COPPER V WANDSWORTH BOARD OF WORK [1863] 14 C.B.N. 5 180
143

E.R. 414

The plaintiff brought an action of trespass against wandsworth district board for pulling down and demolishing his house. The defendants put forward that they were authorized to do so by-laws it enacted that before any person shall begin to build a new house he shall give seven days notice to the district board, of his intention to build and provide as the end that, in default of such a notice it shall be lawful for the district board to demolish the house. The board says no notice was given by the plaintiff to build the house n question where after thy demolished it.

Held; the board ought to have given notice to the plaintiff and to allow him to be heard.

The principle that no man shall be deprived of his property without an opportunity of being heard, is limited to judicial proceedings. The act of the board was in exercise of judicial discretion. There was an appeal clause which indicated that any exercise of power of a district board would be in the nature of judicial proceedings.

Even if they acted ministerial the statute provided that they would give notice of their order before executing it.

They contravened the words of the statute.

PATEL V PLATEAU LICESING COURT [1954] 27 K.L.R. 147

an application by Patel for a writ of certiorari and mandamus to restore and re issue his non spiritus liquor license cancelled by that court after liquor was purchased on his premises.

The plateau liquor licensing court on the strength of a superintendents letter cancelled the applicants license without giving any notice to him or giving him an opportunity to make any representation or to controvert the statement conferred of the superintendents letter asking that his license be cancelled on the grounds that he had been convicted twice under the penal code.

Under section 50 (2) of the liquor licensing ordinance the holder of any retail liquor license is liable to forfeit such license if he is convicted of an offence under the liquor ordinance and a previous conviction within the proceedings 12 months of the same or any other offence under that ordinance is proved or if three previous convictions within the proceedings 5 years proved.

23(4) liquor licensing ordinance provided that: a licensing court, when sitting, may at any time without assigning reasons therefore, cancel a license issued under the provisions of this ordinance with effect from such date as court may determine.

Held;

The accused should not be condemned without first being given a fair chance of explanation.

The word hearing in section 24 was construed to be an oral hearing. That subsection does not exempt the licensing court from giving the license holder a fair opportunity to correct or contradict any relevant statement, prejudicial to his views.



RE MAINA'S APPLICATION.

Customs and transfer tax management act, made it an offence for any person in any way to obstruct an officer in the execution of his duties. It also said that “the commissioner may, where he is satisfied that any person has committed any offence against this act in respect of which a fine is provided...compound such offences and may summarily order such a person to pay as he may think fit...”.

The applicant was accused of obstructing one of the employees of the customs and excise department and summoned on a particular date. He immediately consulted a lawyer, but the lawyer could not come with him on the specified date and time in the notice because of other prior engagement. Despite the fact that the applicant's lawyer asked for an adjournment and suggested another time, no attention was paid to the request for adjournment. The lawyer was informed later that the matter had already been dealt with and the applicant fined.

Held; even if the commissioner was performing an administrative function, he was bound to give the applicant a fair hearing since he had a right / interest in the matter. The commissioner was performing a quasi/ judicial function there by certiorari.

DUYARAPAM V FERNANDO'S [1967] 2 ALL E.R. 152

As a result of complaints by the municipal council, the Minister of local government sent the commissioner of local government to inquire into allegations reported to him immediately. The mayor of the town gave the commissioner every facility. But the commissioner did not ask questions or give any council members an opportunity to express their views. He made his report orally then in writing. On receiving the report, with the powers conferred upon him the minister dissolved the council citing incompetence. The governor-general appointed the commissioner with two other persons to the special commission to exercise perform and discharge duties and functions conferred on the council or the mayor by the ordinance. The appellant took proceedings for mandate in the nature of certiorari in the nature of writs of certiorari and quo warrants quashing the orders of the minister and for an interim injunction to restrain the special commissioners' from exercising functions of the council or the applicant.

Held; the rule of natural justice, Audi alteram partem, was applicable to a decision on the part of the minister to make an order on the grounds of incompetence on the part of the council, accordingly since the rules had not been observed in the minister's orders was void.

The rule *Audi alteram partem* was applicable for the reasons that a consequence of the order was to deprive the council of its property.

Though the order could have been held void abinito in an action the council, yet it was so voidable only at the election of the council, and it was not a nullity, accordingly as the appellant, thought mayor at the time was not representing the council, in these



proceedings and it was not shown that the council could not have been a petitioner, he was not entitled to complain of the order and could not maintain the present proceedings.

No statutory body having statutory powers, authority and duties shall be deprived of its authority without an opportunity of being heard.

RIDGE V BALDWIN [1964] A.C. 40

Ridge was dismissed from work as a Chief Constable without being given an opportunity of being heard by the Watch Committee. No specific charge was notified to him and his counsel was not given particulars of the case against him.

Held;

The decision of the respondent to dismiss the appellant was null and void; and that accordingly, notwithstanding that the decision of the Home Secretary was final and binding to the parties.

The decision of the respondents was a nullity; Per Lord Reid, Lord Morris and Lord Hodson.

As the appellant was not a servant of the respondents and they could dismiss on grounds stated in the law, they dismissed him on grounds of neglect of duty, they were bound to observe the principles of natural justice, by informing him of the charges made against him and giving him an opportunity of being heard which they had not done.

Per Lord Devlin

If these matters fell to be decided on the grounds of breach of the principle of natural justice, such a breach would render the decision of dismissal voidable and not null ab initio.

HYPILITO CASSIONO DE SOUZA V CHAIRMAN AND MEMBERS OF THE TANGA TOWN COUNCIL [1961] E.A. 377

A complaint was made by two councilors against the appellant who was on time acting fire master employed by the Tanga town council, one of the complainants was the chairman of the traffic fire lighting and police liaison committee. The complaint was investigated and a report was made to the committee which was presided over by one of the complainants. The appellant was summoned and informed by the committee of the allegations. After hearing the appellant, the committee resolved to suspend the appellant from duty and recommended to the town council that subject to any recommendations of the finance committee on the appeal by the appellant to be dismissed from service.

The appellant and his advocate were called to attend the finance committee which was entrusted with hearing the appeal by a regulation. They were kept waiting while the finance committee held a private discussion which both the complainants were present, although they were not members to the finance committee. The

appellant and advocate were not informed of the nature of the discussion. When the hearing commenced the appellants advocate were refused information to the particular charges. The advocate then asked for and obtained with the hearing of the applicants dismissal which was confirmed by the council.

Held;



It was objectionable that a councilor who was one of the original complainants should have sat as chairman of the traffic and fire committee investigating the alleged offence. Being a complainant, he should have withdrawn from the committee on this occasion at least, should have asked the appellant if he objected to his adjudicating on the complaint. It was not shown in any of the affidavits that the appellant was not sufficiently informed of the case against him at that stage and given an opportunity of controvert it and make any statement he wished.

The presence of the complainant with the appeals committee in the absence of the appellant constituted a departure from the principles of natural justice it is immaterial that their presence may not have influenced the decision. The committee presumably had a report of some kind from the traffic and fire committee which had matter, they should have made this or the substance of it known to the appellant which they did not.

It was no answer to say that the appellant knew that the evidence against him had been before the traffic and fire committee he did, he did not know of which charges he had been found guilty of and grounds for his dismissal by the committee. The principle did not sufficiently know what the case against him was at that stage.

The appeals committee did not observe natural justice. The decision of the committee was declared to be a no decision. Certiorari and mandamus was allowed.

METROPOLITAN PROPERTIES V LENNON [1968] 3 ALL E.R. 304

Three tenants applied to the rent officer to register a fair rent for each to the flats the land lord having proposed an increase in rent. The land lord objected the rent officers determination and applied to the rent assessment committee . the chairman of the committee lived in a building with his father, the landlord was an associate company belonging to the same group of landlords as the applicant land lord. the chairman's firm had from time to time acted for other tenants at this lodge who where in dispute on similar matters to those of the present case and the chairman had himself assisted in writing a letter to the rent officer making representation on behalf of his father. The committee fixed as the fair rent in respect of each flat on amount that was not only below the amount put forward by the expert and those offered by the tenant. According to statute the committee gave written reasons for their decision in which they omitted to give the reasons they had not accepted any of the evidence given about what the rent should be and why having accepted the determination fair rent of a flat in another block of the flat in the same locality as a guide. they then put the figures at the first apartment lower. On appeal by the landlord from an order of the divisional court dismissing their appeal on the ground that the committee erred in law in arriving at their decision and refusing to grant an order of certiorari quashing the committees decision on the grounds of bias on the part of the chairman.

Held;

The decision of the committee would be quashed because; despite unsatisfactory features in the committee's written decision, there was to reason to differ from the divisional court. On the fact the chairman ought not to have been the chairman of the committee.



LOCAL GOVERNMENT V ALRIGE [1915] A.C. 120

Section 17 of the housing, town planning act 1909, authorizes and requires a local authority to make a closing order in respect of an dwelling house in their district it appears to them to be unfit for human habitation and to determine such an order on being satisfied that such dwelling house has been rendered fit for human habitation, and gives to the owner of the dwelling house a right of appeal to the local government board against the closing order and against the refusal to determine the same.

By section 39 the procedural on any such appeal shall be such as the local government board shall not dismiss any appeal with out first having held a public local inquiry and this provision was contained in rules was contained in rule made under this section by local government board.

Held;

A properly authenticated order of the local government board dismissing an appeal under these section is not open to objection on the ground that it does not disclose which of the officers of the board actually decided to appeal.

That an appellatant to the local government board is no entitled as of right, conditions precedent to the dismissal of his appeal either to be heard orally before the deciding officer. To see the report made by the board inspector upon the public local inquiry.

Authorities must deal with matters referred to them without bias, and they must give to each to the parties the opportunity of adequately presenting the case made. The discussion must be come to in the spirit, and with the sense of responsibility of a tribunal whose duty it is to mete out justice.

Decision of the court of appeal was reversed.

MURIGAN AND SONS LTD AND OTHERS V TRANSPORT APPEALS TRIBUNAL [1959] E.A 1

The tribunal acted contrary to the principle of natural justice in that they took into account certain observations contained in a circular addressed by the chairman of the transport of the board to members to that board without offering the applicant an opportunity of seeing that circular and advancing such argument in relation there as they might think proper.

The document did to emanate from one of the part to an inquiry but from the chairman of the board which was charged with quasi-judicial function and giving reasons for the board decision I the present matter and in other application.

Held; where a quasi judicial authority improperly has before it information in favor of one party, that party can not seek to set aside the decision of the authority

upon the ground of its having taken into account matters which ought.

For the foregoing reasons event they were prepared to hold that the tribunal acted improperly in referring to the chairman's circular, which were are not , we would not consider that the reason of the tribunal having referred to that circular certiorari. Ought to issue that their instance e of the application.



Application dismissed with costs.

R EXPARTE EASTERN PROVINCE BUS COMPANY V ROAD
TRANSPORT APPEAL TRIBUNAL [1959] E.A 499 (U)

This is a notice of a motion for an order of certiorari, to move to this court and quash the decision of the transport boards the road transport enquiry was held by the transport licensing board at Jinja. There were two applicants for a route eastern province bus company and Kampala district service limited and several objectors for a license for an express route from Jinja to Soroti. The board considered some records in its possession in coming to the decision to grant the license to Kampala and district service. the reason for granting Kampala and district service was that it provided service from Kampala through Soroti thus enabling passengers from the west to proceed to Soroti on a though ticket.

Held.

Both applicants were given ample opportunity to present their cases and there is no ground what so ever to complain in any way of their procedure adopted.

The board had power to consider other sources of information kike letters or memoranda.

The board was quite entitled to consider their own records and further that the reasons they gave for their decision were quite reasonable and they acted all along in accordance with the relevant legislation. There was no breach of natural justice.

Application was dismissed with costs.

REMEDIES

Certiorari and prohibition.

Milling ordinance 1952 (no 24 of 1952) and application for order of certiorari 1954) 2 T.L.R. ® 192

The application for a writ to certiorari to issue in respect of a matter declared by statute to be final and conclusive and not to be questioned by any court proceedings.

R v Electricity Commissioner [1924] 1 K.B. 171

The electricity commissioner empowered by the act establishing to constitute provisionally separate electricity districts and in certain events to formulate schemes for effecting improvements in the existing organization for the supply of electricity in any electricity district so constituted and are directed to hold local inquiries upon the schemes. A scheme so formulated may provide for the incorporation of joint electricity authority representative of authorizing undertakers within the electricity district.

Under statute a scheme may provide for enabling the joint electricity to delegate, with or without restrictions, to the committee of the authority any of the empowered or duties of the authority.

Again under statute the commissioner may make an order giving effect to a scheme embodying the decisions they have arrived at after holding a local inquiry, at present the orders for confirmation by the minister of transport under a different sect.



the order of confirmation is to be laid before parliament and does not come into operation until its approval.

The commissioner constitutes an electricity district and formulated a scheme providing for the incorporation of a joint electricity authority which purported to represent both local authority should at its first meeting appoint two committees and assign to each committee in respect of portion assigned. The commissioner began to hold a local inquiry with a view to making an order embodying the scheme.

Certain companies affected by the scheme applied for writs of prohibition and certiorari. On the grounds that the scheme was ultra vires in so far as it compelled the joint authority to appoint two committees and delegate to them power and duties to joint authority.

Held:

That scheme was ultra vires and that a writ of prohibition should issue prohibiting the commissioner from proceeding with the further consideration of the scheme notwithstanding that the order of embodying the scheme would not come into operation until confirmed by the minister of transport and approved by resolutions of the houses of parliament.

R V MANCHESTER LEGAL AID [1952] 2 Q.B. 413

The local committee was a body of persons having legal authority to determine questions affecting the rights of subject was admitted.

It was contended on behalf of the committee that there is no duty to act judicially unless the proceedings are judicial or quasi judicial proceedings in the series that there is some form of lis and there is a duty to hear both sides.

Held:

The duty to act judicially when;

The decision is that of a court then unless as in the case, for instance, of justices granting exercise, license, it is acting in a purely ministerial capacity; it is clearly under a duty to act judicially.

On the other hand, the decision is that of an administrative body and is actuated in whole or in part by questions of policy; the duty to act judicially may arise in the course of arriving at that decision. Thus, if in order to arrive at the decision, the body concurred had to consider proposals and objections and consider evidence, then there is a duty to act judicially in the course of that inquiry.

Though the body is an administrative body because they administered the act. They decided matters solely on the fact of a particular case solely on the evidence before them, and apart from any extraneous consideration. In other words they must act judicially and not judiciously.

RE- APPLICATION BY THE ATTORNEY GENERAL OF KENYA [1958]

E.A. 529

(K)

The municipal authorities assessed the undeveloped site value of the sea bed. The crown was liable to pay the municipal board of Mombasa in respect of crown land a



contribution in lieu of rates, such contribution being calculated on the valuation of crown land in the same manner as rates on private land.

The crown objected to that valuation on grounds that the sea bed was not rateable at all and that if it was, it had no value. At the hearing of the objections the Mombasa crown property valuation committee, the municipal valuer said in the evidence that in view of the figures produced by the crown, he could not substantiate the valuation he had but he could work out another valuation on a different basis if he were given time. The valuation committee decided that the land was rateable and that evidence was insufficient for a proper rateable value to be made. The committee requested the municipal valuer for a re appraisal but the crown was to informed of this.

The attorney general where upon applied to the supreme court for an order of prohibiting the Mombasa crown properties valuation, re appraisal or other opinions from the municipal valuer.

The grounds which the crown seeks the order of prohibition;

- a) This committee exceeded its jurisdiction and had no power to invite or to order the municipal valuer to submit a further valuation , reappraisal or other opinion in respect to the sea bed; and
- b) The committees action in seeking a re-appraisal from the Mombasa municipal valuer was in the circumstances a departure from the fundamental principals of justice.

Held;

It is common ground that an order of prohibition will lay, if it exceeds its jurisdiction or acts contrary to the rules of natural justice.

The duty of the crown property valuation committee is to consider the complete valuation. The direction of the valuer was interpreted to indicate an intention to obtain from him (the valuer) further information of calculation of rateable value in light of the evidence placed before the committee.

If a valuer finds that his valuation has been shown to be erroneous, whether because it had been based on incorrect facts or on an incorrect premise the committee was still entitled to seek his aid, in the same manner as of any witness in supplying it with a more correct set of figures.

The committee did to exceed its jurisdiction in coming to the conclusion it made or in issuing its direction to the valuer. both rating authority and the objector should have been notified of the decision of the committee about the decision of the reappraisal. But that failure of the committee to so notify the rating authority and the objectors did not violate principles of natural justice.

MANDAMUS

FAZAL [1960] E.A. 1003

The applicant company has applied for relief by the way of certiorari and mandamus, to the end that the rejection, by the coffee licensing authority of the applicants application for a coffee exporters license should be quashed and that the authority be required to hear and determine that application according to the law.



The grounds for refusal of the license were not given immediately after this rejection. It was contended that the applicant is asking for orders of certiorari and mandamus, rather than suing out and demanding the issue of prerogative writs of those descriptions are seeking relief which the court has no jurisdiction to grant.

The learned counsel for the respondent has rightly pointed out that on the civil side there being no mention of prerogative writs in the civil procedural code, the jurisdiction of the high court of Tanganyika to grant relief by way of certiorari or mandamus derives through article 17 (2) of the Tanganyika order in council 190 from the English common law as it existed where under the relief was granted by the issue of prerogative writs. He rightly points out that the administration of justice act which replaces the issue of the prerogative writs of mandamus, prohibition and certiorari by the making of orders of mandamus of prohibition and certiorari, respectively form no part of the law of Tanganyika.

The court will as a general rule and in the exercise of its discretion refuse an order of mandamus when there is an alternative specific remedy at law which is not less convenient, beneficial and effective.

In the present case the applicant had on two previous occasions exercised their right of appeal to the minister against the respondent's refusal to grant them similar license, only to be informed by letter on each occasion that their appeal had been rejected, no reason for the rejection given.

Mandamus may prove a more effective way of investigating the appellant's grievances and to satisfy the appellant. In the circumstances judicial discretion.

The board was a uni-corporate body so the members have to be served with individual mandamus and certiorari should be served individually.

MILL LICENSE APPEALS TRIBUNAL [1954] 2 T.L.R. (P) 205

Mill board granted a license to Dajiji Parshotems and company limited. In spite of objection of 7 persons; individuals and companies who appealed to the milling appeal tribunal where it was held that they were unable to appeal against granting a license and the appeal was dismissed.

The seven appellants now ask the court to issue a mandamus to the appeals tribunal requiring the tribunal to hear appeal and adjudicate there on. 24 (1) states that the decision of the appeals tribunal is final and can not be questioned by any decision of court.

Held;

It was held that a mandamus can be used when a person imposed under duty imposed by statute or common law refrains from doing that act or refrains from wrong motives from exercising power which it has a duty to exercise.

The court has no jurisdiction to grant mandamus in view of 24 (1) of the ordinance. certiorari can not be granted because of 24 (1) of the ordinance, the authority of the court is restricted to ensure that the appeal tribunal did not act

without jurisdiction or exceed its jurisdiction this court can not go into the merits of the decision even it palpably incorrect on the face of records.

Application dismissed.



DISTRICT COMMISSIONER, KIAMBU V R AND OTHERES EXPARTE
ETHAN NJAU [1960] E.A. 109 (C.A.)

in the process of consolidation of African land and land titles in eh Kiambu district there were two persons to either of whom the committee appointed under the African land tenure rule, 1956, could properly allocate one plot. The committee, having first ascertained and made up without objection the records of existing rights to land in the area, allocated this plot to Ethan Njau, and allocated another plot half a mile away to John Munge. After certificate of allocation had been issued to Ethan Njau, John Munge complained that the allocation was unfair to him. This complaint was considered by the committee which purported, by a majority, to reverse its previous decision, after which the register was made up. Before the register was confirmed Ethan Njau complained that by virtue of the certificate issued to him, he was the owner f the plot originally allocated to him. This complaint, which was treated as an objection under r 17 was rejected by the committee, which proceeded to confirm the register as it stood. Njau then moved the supreme court of Kenya for an order of mandamus directed to the appellant as the officer responsible under the rules to register Ethan Njau as title holder. Before this application could be heard the native registration ordinance, 1959, came into force where by the custody and control of the register was removed from the appellant and placed under the control of a registrar. On the hearing of the application the supreme court rejected a submission that the motion was barred by section 12 of the African court ordinance, 1951, held that since the committee had lawfully allocated the plot to Ethan in first instance, the action of the committee and other officers concerned in reversing that decision and re-allocating the plot to John Munge was ultra vires, and accordingly made the order sought.

Held;

Clear words are necessary before mandamus is lost.

Court will not lean towards construction which will oust their jurisdiction, though they must of course give effect to plain words. Evidence showed no distinct demand by the applicant for the action required to of refusal of it by the appellant.

The law as a general rule requires such demand and refusal as a pre-requisite to the granting of an order.

CROWN ON THE PROSECUTION OF JOHN BOYES V LANDS
OFFICER, EAST AFRICA PROTECTORATE [1915] E.A.L.R. 63

H required a road of access from his land to the main road, which road of access would out of necessity cross B's farm, a dispute arose between the parties as to the alignment the road should follow. No decision being arrived at, eh dispute was referred under section 2 ©of ordinance 16 of 1914 to the land officer. The land

officer, after correspondence with the parties decided on an alignment. B then petitioned the court for a mandamus to issue, directed to the land officer, requiring him to hear and determine the dispute, to disclose the evidence on which he had acted and to give to him B the opportunity of rebutting the same.



Held:

He had not acted contrary to the law nor acted arbitrarily and offended the principle of natural justice. No procedure had been prescribed for the land officer and it was not necessary for him to adopt procedure to a trial court.

He had acted without bias, he gave the parties an opportunity of adequately present there cases. In following these elemental but vital principles the court could not interfere with his decision.

The land officer acted in good faith. Petition dismissed with costs

RE- SIMUKONDO [1962] R & N 616 (N.R.)

Section 3(1) (d) of the northern Rhodesian electrical provision order no 56 of 1962, provides that an applicant for registration as a voter must be able to complete the application form in English, in his own hand writing and without assistance, while the registration of voters regulation no 57 of 1962, in confirming the above provides that the registering officer should draw the attention of an applicant to any error of omission and afford him an opportunity for correcting them but prohibits him from offering any advice.

One Lungu filled in such a form and was duly registered to which an objection was filed by the applicant before the resident magistrate, Luanshya on the ground that Lungu had not completed the form correct. This application was rejected.

Application to the high court was made for an order of certiorari to quash the magistrates order and for an order of mandamus to direct the magistrate to re-hear the objection.

It was claimed that there was denial of natural justice in refusing to accept affidavits evidence from a person who swore that Lungu knew insufficient English to complete the form unaided.

Held;

The magistrate was an inferior court, to which the high court may issue orders of mandamus and certiorari.

The magistrate made a speaking order so the high court could consider whether the proceedings before him contained manifested error of law.

The magistrate was right to reject affidavit evidence. It was for him to decide where justice lay because the applicant wanted to tender in an affidavit while Mr. Lungu objected to such evidence because he wanted to test it.

The magistrate and the person objected were entitled to observe the demeanor of he witness when telling his story, and should not be forced to depend upon the unreliable and untested evidence of written word.

Admission would have contravened the principle of natural justice because it would deprive Mr. Lunga of an opportunity of testing evidence adduced against him.

INJUNCTION



(C.A.)

The Attorney General of Kenya, appealed against a decision of the supreme court dismissing with costs a claim against the respondents for an order “that the defendants do such and each of them does forthwith maintain roads” on certain land in Nairobi to the satisfaction of the Nairobi town council. At the trial the facts were agreed and no evidence was called by either side. The land in question had been developed as a building estate by the respondents subject to certain condition imposed by the commissioner of lands, the relevant condition being 1 (B) (b), the material portion of which reads as follows;

(b) “The applicant shall construct and maintain to the councils specification and satisfaction all the estates roads of 6 consolidation murrum carriage ways and to approve gradients and camber and with stone pitches side drain. There after the construction of these roads to council is tarmacadam specific is to be dealt with under the private street procedure...”

There was a breach of that condition which he sought to enforce by mandatory injunction.

Held;

While court has no right to question the attorney generals decision to sue for a mandatory injunction in preference to pursuance of other remedies, it retains its discretion to grant or refuse the injunction asked for and must still have regards to the matter to which it usually regards in considering whether not it will grant relief.

As a general rule court will not make orders to do undefined work which may require continuous supervision in the sense of continuous application to see whether the undefined work orders to be done or neither are nor being carried out, but it has some ordered specific work to be erected and maintained.

Where what is required is not merely to refrain a party from doing an act of wrong to oblige him to do some continuous act involving labor and care, the court has never found its way to do this by injunction.

Appeal dismissed

DECLARATION

OPOLOT V A.G [1969] E.A. 631

The appellant, who was formerly a brigadier in the Uganda army and chief of the defense staff, was discharged from the army on October 7, and was detained under emergency regulations. He applied to the high court for a declaration:

- a) That his discharge was invalid and that he was still a member of the armed forces and chief of staff;
- b) That the armed forces (discharge) regulation. 1966 was invalid.

The application was refused by the high court and the appellant then appealed to the court of appeal.



SIR CHARLES NEWBOD, P:

Under 0.11, r.7 of the civil procedure rules the court may make a binding declaration of right whether or not any consequential relief is or could be claimed. This is a very wise power; but it is a discretionary power and one which should be exercised, if at all, only with the greatest caution where the declaration is sought would have the result of creating a relationship between persons, which relationship has an essential element of mutual confidence. Further, where the result of the declaration would be seriously to embarrass and prejudice the security of the state.

DYSON V ATTORNEY GENERAL [1911] 1 K.B. 410

The legislature has entrusted to a government department (commissioner of inland revenue) the performance of the duty of making certain specific inquiries in a specific manner from land owners and of requiring answers to be sent to themselves and has imposed a 50 pound penalty for disobedience. The plaintiff alleges that the commissioners have exceeded their powers by making inquiries not authorized to be made, by not giving proper time to answer and by requiring answers to be sent to a person not authorized to receive them to whom it is injurious to the plaintiff interest to send them.

Held:

The attorney general was properly made a defendant. In cases where the crown is directly affected the only course of proceedings is by petition of rights, because the court can not make a direct order against the crown to convey its estate without the permission of the crown, but when the interest of the crown are only indirectly affected. Court of equity, could and did make declarations and orders which did affect the rights of the crown.

In the case where a petition of rights is required, that proceedings exist only for the purpose of reconciling the dignity of the crown and the rights of the subject and to protect the latter from injuries arising from acts of the former but it is no part of its objections to enlarge or alter those rights.

In the crown was not directly affected but the plaintiff seeks a declaration from the court of the true construction of the acts which impose burdensome and expensive inquiries upon him, and for non compliance which he threatens with a fine.

Appeal allowed

NGILISHO GADI MSUE V THE COUNCIL OF CHAGGA CHIEFS AND OTHERS [1938] 5 E.A.C.A. 63

The first named respondent purporting to act under section 15 of the native authority ordinance promulgated a rule or order requiring all native coffee produce of

their plantation to the third named respondent and not otherwise under sanction of fine and or imprisonment.



The appellant, a native cultivator of coffee at Mashame in the Moshi district instituted a suit against the first, second and third named respondent for a declaration that the said rule or order was void as being ultra vires.

The fourth named respondent was, on his application, joined as a party on the ground that the second and first respondents were part of the government. The suit against the government. The suit against the go

KATI KIRO OF BUGANDA V ATTORNEY GENERAL OF UGANDA

BARNARD V NATIONAL DOCK LABOUR BOARD AND OTHERS [1953]
2 Q.B.

18

Under the dock workers (regulation of employment) scheme 1947, the power to suspend a man is entrusted to the local dock, which is composed of equal member of representative of the workers and employer. The board in this case did not themselves suspend the men, the port manager did. The local board did not have anything to do with it. They did not see the report made by the employers, they did not investigate the matter, they did not make any decisions upon it themselves; they left it all to the port manager. The suspension was not brought to their notice until after the appeal tribunal had given their decision.

The men sought a ruling of the court was the question of procedure whether they had been lawfully suspended.

Held;

The board was in a judicial position between the employers and the employees and could not delegate its judicial powers. Judicial powers are rarely delegated and can only do so if by either express or necessary implication not of which were available.

The board could not delegate powers which had been delegated to it following the principle of *delegatus non potest delegare*;

The only remedy available to the men was declaration; the men could not get redress by certiorari because they did not know the facts. In certiorari there is no discovery, whereas on an action for declaration it can be heard

Declaration granted.

32. Delegation of functions by a Minister or council.

(1) A Minister responsible for a Government Ministry may, after consultation with the Minister, delegate functions, powers and responsibilities vested in that Ministry to a local government council; and a

local government council may delegate its functions, powers and responsibilities to a lower local government council within its area of jurisdiction.

33. Delegation by a local government council to chairperson, etc.

(1) Subject to the Constitution and the Fourth Schedule, a local government council may delegate some of its functions, powers or responsibilities under this Act to—



1. the chairperson of the relevant council;
2. a committee of the relevant council;
3. a joint committee created under section 8(2); or
4. a council, trust fund or secretariat formed under section 8 of this Act and article 178 of the Constitution, as may be agreed upon in the charter.

(2) A delegation under subsection (1) shall—

1. be accompanied by the necessary resources to enable the person or body delegated to exercise the functions, powers or responsibilities; and
2. be brought to the attention of the public as provided under section 32(4).



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Functions and powers of a local government council not to be delegated.

1. Approval of annual budget estimates
2. Approval of supplementary estimates
3. Making byelaws for the proper conduct of the council's own business
4. Approval of development plans
5. Passing of bills for ordinances and byelaws
6. Power to raise loans and mortgaging council property
7. Any other function or power that may be added to the above by the Minister with the *Legislative powers*.

38. Enactment of district laws.

1. A district council shall have powers to make laws not inconsistent with the Constitution or any other law made by Parliament which power shall be exercised by the passing of local bills into ordinances by the council and signed by the chairperson.
2. A local bill passed by a district council shall be forwarded to the Attorney General through the Minister to certify that the local bill is not inconsistent with the Constitution or any other law enacted by Parliament before the chairperson signs the law.
3. Where the Minister with the advice of the Attorney General is of the opinion that a bill for an ordinance contravenes or derogates from the Constitution or other law by Parliament, he or she shall, within ninety days, return the bill with his or her comments to the relevant council for modification or other appropriate action.

4. A bill enacted by the district council and signed by the district chairperson under this section shall be an ordinance of the council and shall be published in the official Gazette and in the local media.
5. The public shall be given access to any ordinance passed or to be passed by the council as is provided in the Third Schedule.
6. Subject to the Constitution, the council may in any ordinance delegate its powers to legislate to a council, trust fund or secretariat formed under section 8 of this Act and article 178 of the Constitution, which power shall be discharged by making rules or orders under the enabling ordinance or as may be agreed upon in the charter.
7. The procedure for passing a bill to an ordinance shall be as is provided in the Third Schedule.

39. Byelaws by lower councils.

1. An urban, subcounty, division or village council may, in relation to its powers and functions make byelaws not inconsistent with the Constitution, or any law enacted by Parliament, or an ordinance of the district council or a byelaw passed by a higher council.
2. Byelaws made under this section—
 1. by a municipality, shall be subject to section 38(2);
 2. by a lower local council other than a municipality shall be forwarded to the district council to certify that the byelaw is not inconsistent with the Constitution, or any law enacted by Parliament, or an ordinance of a district or a byelaw passed by a higher council;
 3. by the village or municipal division councils in a municipality shall be forwarded to the municipal council to certify that the byelaw is not inconsistent with any law or ordinance or byelaw passed by a higher council;
 4. by the village council shall be forwarded to the subcounty council to certify that the byelaw is not inconsistent with any law or ordinance or a byelaw passed by a higher council.

(3) Where the Minister or the relevant council, as the case may be, is of the opinion that the byelaw forwarded under subsection (2) contravenes

or derogates from the Constitution, or any law or an ordinance, or a byelaw passed by a higher council, the Minister or the council shall within sixty days from the date of receipt, return the byelaw with his or her or its comments to the enacting council for modification or other appropriate action.

4. A byelaw made under this section may prescribe fees, or charges or fines not exceeding two currency points in breach of the byelaw.
5. On the making of a byelaw, a council shall notify the next higher local government before implementing that byelaw.
6. The procedure of passing a byelaw by a local government council shall be as is provided in the Third Schedule.
7. A byelaw made under this section may—
 1. create an offence for a breach of a provision of the byelaw;
 2. in the case of a municipality, prescribe a penalty of a fine not exceeding two currency points or a term of imprisonment not exceeding six months or both in respect of an offence created under paragraph (a) of this subsection;
 3. provide that where a person is convicted of an offence created by the byelaw which prohibits possession of an article, object or thing, the court orders the forfeiture or destruction of the article, object or thing in addition to the penalty provided;
 4. in the case of a municipality, prescribe that in addition to or substitution for the penalty, if the breach relates to a condition of a licence or permit under the byelaws, the licence or permit be suspended or cancelled;
 5. provide that in addition to the penalty, any expenses incurred by the local council or person or other public body as a result of the breach of a provision of an ordinance or nonperformance of a requirement under the ordinance shall be paid by the person convicted, and expenses may be recovered summarily as a civil debt.

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BASIC PRINCIPLES OF ADMINISTRATIVE LAW

- 1) *The rule of law*
- 2) *Independence of the judiciary*
- 3) *Separation of powers*
- 4) *Human rights*
- 5) *Democracy of a representative Government*
- 6) *A fair system of criminal proceedings*
- 7) *Accountability in administrative issues*
- 8) *Social justice*
- 9) *Executive/ ministerial responsibility*
- 10) *Supremacy of the constitution.*

